



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

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EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED 25 MAY 2022.

PRESENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor/Presiding Officer
Hon. JONALINA R. REYES	- Councilor
Hon. LIZA L. CARDEÑO	- Councilor
Hon. WILFREDO I. BEJASA, JR.	- Councilor
Hon. GERONIMO D. ROMANTIGUE	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. LIBUNERO O. ALATIIT	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. ALEXIS H. DESUASIDO	- Councilor
Hon. RODOLFO C. MONTAÑEZ, JR.	- ABC-Federation President
Hon. MA. ANGELICA QUERUBIN A. ALONTE	- SK-Federation President
IRENE D. BALIDO, MPA	- OIC, City Council Secretary

ABSENT:

Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor (Absent)
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CITY ORDINANCE NO. 4-(2022)

AN ORDINANCE PROVIDING FOR A COMPREHENSIVE REGULATORY AND DEVELOPMENTAL FRAMEWORK FOR THE SUSTAINABLE DEVELOPMENT OF TOURISM IN THE CITY OF BIÑAN, IMPOSING FEES AND PROVIDING INCENTIVES, AND IMPROVING PUBLIC SPACES IN SUPPORT THEREOF.

Author: Councilor Hon. JONALINA R. REYES
Chairman, Committee on Tourism and Cultural Development
Co-Author: Councilor Hon. ALEXIS H. DESUASIDO

WHEREAS, Section 17 of Republic Act 7160, otherwise known as the Local Government Code of 1991, provides that aside from the regular powers and duties vested in them, local government units shall likewise discharge the functions and responsibilities of national agencies devolved to them on basic services and facilities;

WHEREAS, the Local Government Code also states in its General Provisions that the City shall administer all tourism facilities and other tourist attractions including acquisition of equipment, regulation, and supervision of business concessions and security services for such facilities, and shall be responsible for tourism development, marketing, promotion, conservation, and preservation of tourism and historical sites;

WHEREAS, Section 2, Subchapter of Republic Act 9593 (the "Tourism Act of 2009") wherein the state declares as its policy that "tourism as an indispensable element of the national economy and an industry of national interest and importance, which must be harnessed as an engine of socio-economic growth and cultural affirmation to generate investment, foreign exchange, and employment, and to continue to mold an enhanced sense of national pride for all Filipinos";

WHEREAS, Section 4, Subsections (q) and (r) of the Tourism Act of 2009 define the regulatory powers of the Department of Tourism over the operation and maintenance of tourism-oriented and tourism-related establishments such as travel and tour services; land, sea, and air transport services exclusively for tourist use; accommodation establishments; convention and exhibition organizers; tourism estate management services; and such other enterprises as may be identified by the Secretary of Tourism, after due consultation with concerned sectors as well as all other tourism enterprises not covered by preceding enumeration;

WHEREAS, Section 35 of Subchapter 11 of Tourism Act of 2009 lays down the respective duties of the national and local government as well as their coordination in local and national tourism plans. The Department of Tourism shall provide financial and technical assistance along with capacity-building measures to local government units to prepare the same to implement and monitor tourism development, tourism law enforcement, and implement of the national tourism development plan. The Department of Tourism, the Tourism Promotions Board, and the Tourism Infrastructure and Enterprise Zone Authority shall prioritize the promotion and development of local government units that adopt and implement their tourism development;

WHEREAS, Section 37 of Subchapter 11 of Tourism Act of 2009 empowers the local government unit in utilizing their powers under Republic Act 7160, otherwise knowns as the "Local Government Code of 1991" in preparing a local tourism development plan that integrates the national system of standards for tourism enterprises in a manner that encourages sustainable tourism development;

WHEREAS, to provide for the efficient and effective operation and maintenance of all tourism-oriented and tourism-related establishments and sectors it is imperative to provide through legislation such rules and regulations as may be necessary for their operation and maintenance;

WHEREAS, under Section 2 of Republic Act No. 10066, the State shall protect, preserve, conserve, and promote the nation's cultural heritage, its property and histories, and the ethnicity of local communities; establish and strengthen cultural institutions; and protect cultural workers, and Section 32 thereof requires that the implementation and creation of a tourism master plan shall be consistent with the National Heritage Act of 2009.

WHEREAS there is a unified cohesive agenda for cultural heritage and tourism in the City of Biñan (the "City"), embodied in various ordinances regarding various heritage sites, and especially City Ordinance 12-2016, establishing the Biñan City Culture, History, Arts and Tourism Office (BCHATO);

WHEREAS, stakeholders in the tourism industry in the City will require viable, sustainable, and complementary support and direction from the government;

NOW THEREFORE, be it ordained by the Sangguniang Panlungsod of the City of Biñan, Province of Laguna, in a session assembled:

ARTICLE I

GENERAL PROVISIONS

SECTION 1. TITLE. – This Ordinance shall be known as "The Biñan Comprehensive Tourism Code".

SECTION 2. SCOPE. – This Ordinance codifies existing ordinances on heritage and tourism, provides for a framework for the sustainable tourism development of the City, and the necessary regulations to attain that end. In that regard, it also identifies and establishes special areas for development for tourism, through the improvement of the built environment, or of programs for improving the visitor experience, or both.

SECTION 3. APPLICATION. – This Ordinance shall apply to throughout the territory of the City Government of Biñan, the City Government, the barangays under its jurisdiction, and the citizens, residents, visitors, businesses, institutions, organizations, and all other stakeholders within that territory.

SECTION 4. CONSTRUCTION. – The provisions of this Ordinance shall be liberally construed to advance and implement its stated policies in line with existing laws, ordinances, and accepted practices.

SECTION 5. STATEMENT OF POLICIES AND PRINCIPLES. – This Ordinance is being adopted to establish a policy and implement a strategy that supports the growth and development of sustainable tourism in the City of Biñan to promote economic development while properly stewarding the City's natural and cultural resources. Toward that end, the interpretation and implementation of this Ordinance considers the following principles:

a. The 1987 Constitution

1. Protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature, as provided under Article II, Section 16.
2. Prioritization of education, science and technology, arts, culture, and sports to foster patriotism and nationalism, accelerate social progress, and promote total human liberation and development, as provided under Article II, Section 17, and the conservation, promotion, and popularization the nation's historical and cultural heritage and resources, as well as artistic creations, under Article XIV, Section 15.
3. Recognize the indispensable role of the private sector, encourage private enterprise, and provide incentives to needed investments, as provided under Article II, Section 20.
4. Encourage non-governmental, community-based, or sectoral organizations that promote the welfare of the nation, as provided under Article II, Section 25.
5. The autonomy of local governments, as provided under Article II, Section 27.

b. The Tourism Act of 2009 (RA No. 9593)

1. Recognize sustainable tourism development as integral to the national socio-economic development efforts to improve the quality of life of the Filipino people, providing the appropriate attention and support for the growth of this industry, as provided under Section 2(b) of Republic Act No. 9593.
2. Promote a tourism industry that is ecologically sustainable, responsible, participative, culturally sensitive, economically viable, and ethically and socially equitable for local communities as provided under Section 2(c).
3. Ensure the right of the people to a balanced and healthful ecology through the promotion of activities geared towards environmental protection, conservation, and restoration, as provided under Section 3(h).
4. Develop responsible tourism as a strategy for environmentally sound and community participatory tourism programs, enlisting the participation of local communities, including indigenous peoples, in conserving bio-physical and cultural diversity, promoting environmental understanding and education, aiding in the determination of ecotourism sites, and ensuring full enjoyment of the benefits of tourism by the concerned communities, as provided under Section 3(i).
5. Ensure the preparation and implementation of a tourism development plan, the enforcement of standards and the collection of statistical data for tourism purposes, and to, insofar as practicable, prepare local tourism development plans that integrate zoning, land use, infrastructure development, the national system of standards for tourism enterprises, heritage and environmental protection imperatives in a manner that encourages sustainable tourism development, as provided under Section 37.

c. The Local Government Code (RA No. 7160)

1. The promotion of the general welfare, as provided under Section 16, particularly the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among their residents, maintain peace and order, and preserve the comfort and convenience of their inhabitants.
 2. The exercise eminent domain, as provided under Section 19, particularly exercise the power of eminent domain for public use or purpose or welfare upon payment of just compensation.
 3. The power to generate and apply resources, as provided under Section 18, particularly to establish an organization that shall be responsible for the efficient and effective implementation of the Municipality's development plans, program objectives, and priorities; to create its own sources of revenues and to levy taxes, fees, and charges which shall accrue exclusively for its use and disposition and which shall be retained by them; to acquire, develop, lease, encumber, alienate, or otherwise dispose of real or personal property held by it in its proprietary capacity and to apply its resources and assets for productive, developmental, or welfare purposes, in the exercise or furtherance of their governmental or proprietary powers and functions and thereby ensure their development into self-reliant communities and active participants in the attainment of national goals.
 4. The approval of ordinances, as provided under Section 447, particularly regarding disaster mitigation, relief, and rehabilitation, protection of the environment under subsection 1, apply resources and generate revenues, adopt zoning ordinances and land use plans under subsection 2, issue permits or licenses, and to levy taxes and fees to promote the general welfare under subsection 3, regulate activities relative to the use of land, buildings and structures under subsection 4, the provision of basic services under subsection 5.
- d. The National Cultural Heritage Act of 2009 (RA No. 10066)
1. The duty to protect presumed and declared cultural sites, as provided under Section 5 and Section 7, and to provide access to such sites under Section 40.
 2. The duty to maintain and the specific obligations as regards heritage zones, in relation to adaptive reuse, the maintenance of appearances, and the documentation and sustention of cultural practices, under Section 13.
 3. The development of a local registry of cultural property and its submission to the National Commission for Culture and the Arts, under Section 14.
 4. The inclusion of heritage conservation in the creation and implementation of tourism master plans under Section 32 (a).
 5. The inclusion of cultural property programs in local government budgets under Section 33.
- e. The Charter of the Laguna Lake Development Authority (RA No. 4850)
1. The promotion and acceleration of the development and balanced growth of the Laguna Lake area and surrounding provinces, cities, and towns, for social and economic development, with due regard and adequate provisions for environmental management and control, preservation of the quality of human life and ecological systems, and the preservation of undue ecological disturbances, deterioration, and pollution, under Section 1.

The foregoing policies and principles take precedence over other statutory policies and principles as regards the interpretation and application of this Ordinance.

SECTION 6. CODIFICATION BY REFERENCE. – The following Ordinances shall be deemed a part of this Code, shall be attached as Annexes to it whenever practicable, and shall be read and construed together with this Ordinance:

- a. City Ordinance No. 4-2021 An Ordinance requiring Primary Tourism Enterprises to Apply Local Registration with the City Government of Biñan.

- b. City Ordinance No. 5-2021 An ordinance creating the Biñan City Arts and Tourism Council.
- c. City Ordinance No. 6-2021 An ordinance establishing the City of Biñan Tourist Information and Assistance Center.
- d. City Ordinance No. 15-2021 An Ordinance classifying and declaring the School of Rizal Site and Museum as "Local Historical Site", and Gabaldon Building of Biñan Elementary School, Site of the Historic Alberto Mansion, Capilla de San Jose, Old Binyang PNR Station including its office and railway, Biñan Municipal Cemetery including the old Narra and Acacia trees, Francisco Baylon House, Florentino Guico House, Teodoro Velasco House, Laureano Cariño House, Isidro Gonzales House, Soro-Soro Prinza and Timbao Prinza Dam as "Local Heritage Treasure".
- e. City Ordinance No. 20-2021 An ordinance establishing the Artista at Atletang Biñanense College Scholarship Program, Appropriating Funds Thereof and for Other Purposes.
- f. City Ordinance 21-2021 An Ordinance Prescribing the Code for City Logo, Motto, Symbols, Hymns and Other Heraldic Items, Local Culture, History and the Arts of the City of Biñan, Imposing Penalties for Violations Thereof and for Other Related Purposes.
- g. City Ordinance No. 15-2019 An ordinance declaring 1747 as the foundation year of Biñan.
- h. City Ordinance No. 1-2018 An Ordinance Designating Places and Regulating the Hanging or Displaying Of Streamers, Tarpaulin, Billboards, and other Forms of Structure for Purposes of Greeting, Information, and Ads, Providing Fees and Penalties In Violation Thereto.
- i. City Ordinance No. 14-2018, Creating the Biñan City Local Cultural Database and Declaring City Important Cultural Properties
- j. City Ordinance No. 10-2017 An Ordinance Establishing the Biñan Heritage District
- k. City Ordinance No. 14-2017, City Ordinance No. 4-2016, City Ordinance No. 11-2017, Municipal Ordinance No. 24-A-2010, City Resolution No. 197-2017, Municipal Resolution No. 34-2011, in relation to various sites throughout the City as heritage sites or areas to commemorate historical persons
- l. City Ordinance No. 7-2016, Creating the Biñan Heritage Council
- m. City Ordinance No. 8-2016, City Ordinance No. 14-2016, declaring various dates for the commemoration of historical events, or the celebration of cultural practices
- n. City Ordinance No. 9-2016 An Ordinance declaring the Biñan City Archives, designating it as the Official Repository of the City's Historical Documents and Materials, Providing for Its Personnel, and funds thereof.
- o. City Ordinance No. 12-2016 An Ordinance establishing the Biñan City Culture, History, Arts and Tourism Office as the Tourism and Cultural Affairs Department of the City Government of Biñan.
- p. City Ordinance No. 14-2016 An Ordinance declaring February 2-4 of every year as "Araw Ng Biñan" and May 15-23 of every year as "Biñan Puto Latik Festival"
- q. City Ordinance No. 8-2010, Creating Barangay Tourism, Cultural and Historical Councils
- r. Municipal Ordinance No. 121-2008, Creating a Municipal, Historical, Tourism and Cultural Council
- s. Municipal Ordinance No. 1-2008, Establishing a Municipal Library of Biñan, Laguna

If any provision in any of the above-mentioned ordinances cannot be construed together with the provisions of this Ordinance in a manner that advances the policies and principles stated in Section 5, the provisions of this Ordinance shall take precedence.

SECTION 7. DEFINITION OF TERMS. – As used in this Ordinance, the following terms shall be understood to mean as follows:

- a. The City – refers to the City of Biñan, its City Government, and the territory embraced by it
- b. The Office – refers to the Biñan City Culture, History, Arts and Tourism Office
- c. The Department – refers to the Department of Tourism
- d. The Commission – refers to the National Commission on Culture and the Arts
- e. The Council – the Biñan Culture, History, Arts and Tourism Council

- f. The Tourism Master Plan – refers to the Comprehensive Tourism Development Plan for the City of Biñan, with its Annexes, approved and adopted under City Resolution No. 141-2021
- g. Local Cultural Inventory – refers to cultural properties documented in the Biñan City Cultural Mapping Project adopted under City Resolution 67-2021
- h. The Heritage Design Guide – refers to Annex F (p.128-161) of the Tourism Development Plan, entitled “Biñan City Heritage Design Guide”
- i. The Tourism Code – refers to the compilation of this Ordinance with the ordinances explicitly identified under Article 1, Section 6 above, intended to aid in the implementation of the Tourism Development Plan
- j. The Investment Code – refers to City Ordinance No. 2-B (2020), “The City of Biñan’s Revised Investment and Incentive Code of 2020”
- k. The Heritage District Ordinance – refers to City Ordinance No. 10-2017, Establishing the Biñan Heritage District
- l. The Tourism Act – refers to Republic Act No. 9593
- m. The National Cultural Heritage Act or the Heritage Act – refers to Republic Act No. 10066
- n. The Local Government Code – refers to Republic Act No. 7160
- o. Sustainable Tourism Development – refers to the management of all resources that meets the needs of tourists and host regions while protecting the opportunities for the future, in such a way that economic, social, and aesthetic needs can be fulfilled while maintaining cultural integrity, essential ecological processes, biological diversity and life support systems. (RA 9593, sec. 4[v])
- p. Cultural Heritage - refer to the totality of cultural property preserved and developed through time and passed on to posterity (RA 10066, sec. 3[l])
- q. Tourism Enterprises - refers to facilities, services and attractions involved in tourism, such as, but not limited to: travel and tour services; tourist transport services, whether for land, sea or air transportation; tour guides; adventure sports services involving such sports as mountaineering, spelunking, scuba diving and other sports activities of significant tourism potential; convention organizers; accommodation establishments, including, but not limited to, hotels, resorts, apartelles, tourist inns, motels, pension houses and home stay operators; tourism estate management services, restaurants, shops and department stores, sports and recreational centers, spas, museums and galleries, theme parks, convention centers and zoos. (RA 9593, sec. 4[p])
- r. Primary Tourism Enterprises - refers to travel and tour services; land, sea, and air transport services exclusively for tourist use; accommodation establishments; convention and exhibition organizers; tourism estate management services; and such other enterprises as may be identified by the Secretary, after due consultation with concerned sectors. (RA 9593, sec. 4[q])
- s. Secondary Tourism Enterprises - refers to all other Tourism Enterprises not covered by the preceding subsection. (RA 9593, sec. 4[r])

ARTICLE II

ADMINISTRATIVE FRAMEWORK

SECTION 1. THE TOURISM AND CULTURAL AFFAIRS DEPARTMENT. – City Ordinance No. 12-2016, “An Ordinance Establishing Biñan City Culture, History, Arts and Tourism Office as the Tourism and Cultural Affairs Department of the City Government of Biñan” is hereby reiterated and incorporated into this Code.

SECTION 2. ADDITIONAL FUNCTIONS. - Additional functions are hereby provided for the Office, thus amending Section 4 of City Ordinance No. 12-2016 by adding a subsection as follows:

“4.6. To develop and implement plans and programs for the promotion, enrichment, development, and growth of the tourism industry of the City, including but not limited to, the regulation and accreditation of tourism enterprises, the collection of data and the preparation of statistical reports.”

SECTION 3. ADDITIONAL POSITIONS. Additional positions are hereby created in the Office, thus amending Section 7 of City Ordinance No. 12-2016 to read as follows:

"The following positions are to be created under the department with certain provisions to be applied from the Civil Service Commission's Basic Qualification Standards for Government Personnel:

Chief Tourism Operations Officer
Supervising Tourism Operations Officer
Tourism Operations Officer III
Tourist Receptionist I
Administrative Aide
Administrative Assistant
Administrative Officer III
Clerk I
Secretary
Messenger
Culture and Arts Officer
History Researcher
Music Director
Instrument man
Creative Arts Specialist I
Computer Maintenance Technologist I
Computer File Librarian I
Librarian I
Library Aide
Museum Guide
Museum Technician I
Photographer
Translator I
Archivist I
Driver I
Park Attendant I
Park Attendant II
Utility Worker I
Utility Worker II

SECTION 4. THE BIÑAN CULTURE, HISTORY, ARTS AND TOURISM COUNCIL. – City Ordinance No. 7-2016, "Creating the Biñan Heritage Council", City Ordinance No. 5-2021, "Creating the Biñan City Arts and Tourism Council" and Executive Order No. 21-A (2019) are hereby reiterated and incorporated into this Code, subject to the provisions of Article VIII below.

SECTION 5. THE BARANGAY TOURISM, CULTURAL AND HISTORICAL COUNCILS. - City Ordinance No. 8-2010, "Creating Barangay Tourism, Cultural and Historical Councils" is hereby reiterated and incorporated into this Code, subject to the provisions of Article VI below.

SECTION 6. TOURISM STAKEHOLDERS. – The City Mayor, upon the recommendation of the Council, may identify various stakeholders, encourage them to organize for their mutual benefit, for proper consultation and coordination in the development and implementation of programs, and for the general advancement of the City's cultural and tourism programs.

SECTION 7. THE CITY OF BIÑAN TOURIST INFORMATION AND ASSISTANCE CENTER. – The Office shall aid tourists and tourism enterprises regarding tourism-related affairs in the City of Biñan, such as but not limited to information, tours, research, public programs and registration/accreditation as defined in City Ordinance No. 6-2021.

ARTICLE III
ACCREDITATION, REGULATION, AND INCENTIVES

SECTION 1. POLICY ON ACCREDITATION AND REGULATION. – Consistent with the national policy under the Tourism Act, section 14 (c), as regards establishing a mandatory system of accreditation for Primary Tourism Enterprises and a voluntary system for Secondary Tourism Enterprises, and in line with the power of the City to make policies, recommendations, and to implement the same with regard to the issuance of business permits and/or licenses to tourism-related and oriented enterprises, the City shall adopt a unified process with the City Permits and Licensing Office and other relevant offices as may be applicable to tourism enterprises implement the following policies:

- a. As regards Primary Tourism Enterprises:
 1. A general policy shall be adopted, that all Primary Tourism Enterprises must be duly accredited by the Department of Tourism, and the Biñan City Culture, History, Arts and Tourism Office as prescribed in City Ordinance No. 4-2021, "Requiring primary tourism enterprises in the City of Biñan to apply Registration Certificate of Local Tourism Enterprise with the City Government of Biñan", before obtaining the required business permit from the proper city licensing office;
 2. No primary tourism enterprise shall be allowed to operate without securing a provisional permit or accreditation from the Department and the Office;
- b. Accreditation of Secondary Tourism Enterprises shall not be a requirement for purposes of business permits and licensing, unless otherwise required by the Mayor.
- c. In any case, the Mayor, upon the recommendation of the Council, may establish standards and accreditation programs for any primary, secondary, or any other category of enterprises relevant to tourism. It may impose standards as to cleanliness, safety and security, improvement, and uniformity of service, among others, provided that such standards are either superior to that of the Department, or the Department has not provided standards for that class of enterprises. To that end, the Office may also conduct, and require participation and completion in, appropriate training programs to improve the quality of service. These categories of enterprises may include, among others, at the discretion of the Mayor:
 - i. Public utility vehicles
 - ii. Street performers
 - iii. Ambulant and street vendors
 - iv. Community tourist guides

SECTION 2. VISITOR REGISTRY AND REPORTING FOR ALL TOURISM ENTERPRISES. – Whether accredited or not, all Tourism Enterprises shall gather and report various statistical data to the Office to aid the latter and the Department in developing appropriate policies and programs. With due regard for data privacy laws, the Office may require information on the kind, size and number of facilities, the capacity, occupancy rate, and number of guests, nationality, or places of origin, among others. The City Tourism and Cultural Affairs Officer is hereby authorized to inspect any tourism enterprise, whether accredited or not, to evaluate the compliance of enterprises with the appropriate standards, data gathering, and reportorial requirements.

SECTION 3. REGULATION AND SUPPORT FOR ACCREDITED ENTERPRISES. – The following provisions shall apply to accredited Tourism Enterprises:

- a. All accredited enterprises shall benefit from the support of the City in terms of their:
 1. Inclusion in informational and promotional material
 2. Inclusion in tourist circuits, activities, and events
 3. Preference in government procurement
 4. Inclusion in stakeholder consultations
 5. Prioritization in training and other programs offered by the City
- b. In the event of a violation of standards set forth by the terms of the accreditation, or of relevant laws and ordinances, the City shall have the prerogative to take appropriate

measures or impose necessary penalties, upon proper notice and hearing, and shall notify the Department of the violation and the action taken.

SECTION 4. PURPOSE OF FEES AND RENTS. – The fees detailed below collected by the City shall be used to finance the following programs:

- a. The operations of the Office
- b. Environmental and cultural conservation programs
- c. The provision of public works and services, infrastructure and utilities for the City, its residents, and its visitors
- d. Strategic projects to support the tourism industry

SECTION 5. FEES. – The Sangguniang Panlungsod hereby authorizes the collection of the following fees:

- a. Specific fees:
 1. Site Visitor Pass – The Office is authorized to collect the sum of twenty pesos (PHP 20.00) for every person entering any tourist or heritage site owned or controlled by the City.
 2. Day Pass - The Office is also authorized to collect a sum of fifty pesos (PHP 50.00) for a day pass allowing a person to visit any number of tourist or heritage site owned or controlled by the City.
 3. Accreditation Fees – as stipulated in Section 7 of City Ordinance No. 4-2021, "Requiring primary tourism enterprises in the City of Biñan to apply Registration Certificate of Local Tourism Enterprise with the City Government of Biñan", all Tourism Enterprises applying for accreditation shall pay an annual fee to the City of five hundred pesos (PHP 500.00).
- b. Rental Rates – the Office shall recommend the setting of rental rates for the various facilities under its supervision or control, provided that such rates are sufficient to defray the cost of operation and maintenance of such facilities, and provide a reasonable margin of income to generate funds for the purposes stated in Article III, Section 4. The recommendation shall be submitted to the Sangguniang Panlungsod for approval on a year-to-year basis.
- c. Events – the Office shall recommend the setting of reasonable fees for events that it directly or indirectly organizes, whether in the form of entrance fees from attendees, participation fees from presenters, exhibitors, performers, or participants, or from other event organizers. The recommendation shall be submitted to the Sangguniang Panlungsod for approval on a year-to-year basis.

At any time, for any reasonable purpose, the City Mayor may waive the collection of any fees or rents.

SECTION 6. THE INVESTMENT CODE. – Consistent with City Ordinance No. 2-B (2020), "The City of Biñan's Revised Investment and Incentive Code" shall apply to the grant of incentives to tourism and hospitality services and facilities, and such other relevant enterprises identified in Article III, Section

1. The availment of such incentives is without prejudice to the availment of incentives available to accredited Tourism Enterprises under Article III, Section 3(a).

SECTION 7. PREFERRED INVESTMENTS PRIORITY AREAS. – Section 15 of the Investment Code, identifying the Investment Priority Areas, is hereby amended to include the following:

- a. Under Section 15(2) for Property Development and Mass Housing, to include the "Commercial Activities in Heritage Sites and in the Heritage District", and the "Tourism, Cultural, Recreational, and Commercial Area Development of Lakefront Development Area"
- b. Under Section 15(7) for Light Manufacturing, to include "The Manufacturing of Cultural Products as identified by the Biñan Culture, History, Arts and Tourism Council"

SECTION 8. INCENTIVES. - In relation to Sections 15 and 16 of the Investment Code, to promote an investment environment for sustainable tourism, preferred/priority enterprises **not** availing of incentives under national laws in the sectors of:

- a. Tourism and Hospitality Services

- b. Facilities Environmental Protection and Enhancement
- c. Property Development and Mass Housing, for Commercial Activities in Heritage Sites and Tourism, Cultural, Recreational, and Commercial Area Development of Lakefront Development Area
- d. Light Manufacturing, for The Manufacturing of Cultural Products as identified by the Council

may be entitled to receive the following incentives to take effect during the next calendar year, for a minimum period of two (2) years up to a maximum of ten (10) years at the discretion of the City Investment Board, as provided for in implementing rules of the Investment Code:

- a. Mayor's Permit Fees
- b. Business Sales Taxes
- c. Building Permit Fees
- d. Occupancy Permit Fees
- e. Basic Real Property Tax due the City, excluding the barangay share
- f. Amusement Taxes

SECTION 9. TAX EXEMPTION FOR DECLARED LOCAL HERITAGE SITES, LOCAL HISTORICAL SITES AND LOCAL HERITAGE TREASURES. - In relation to City Ordinance 10-2017 Section 8, the City Government shall provide real estate tax relief and exemptions for structures and lots classified as Local Heritage Sites, Local Historical Sites and Local Heritage Treasures, as a form of incentive for the preservation of various heritage structures within the City.

SECTION 10. INCENTIVES FOR HERITAGE SITES OUTSIDE THE HERITAGE DISTRICT. - As stated in Article III, Section 7, commercial activities in specific heritage sites and in the Heritage District shall be entitled to receive fiscal and other incentives under the Investment Code, provided that the structures in which said commercial activities are conducted are properly maintained and conserved.

SECTION 11. ISSUANCE OF LOCAL HERITAGE CLEARANCE. All declared Local Heritage Sites, Local Historical Sites and Local Heritage Treasures, properties registered in the Local Cultural Inventory and all structures fifty years old and above within the City shall be subjected to apply for a Heritage Clearance from the Office before applying for a Demolition Permit from the City Engineering Office. Likewise, all movable properties are directed to apply for a Heritage Clearance regarding any sale and/or transfer.

SECTION 12. SALE OF A CULTURAL PROPERTY. Any sale of a cultural property, either movable or immovable, must be offered first to the City Government.

SECTION 13. REGISTRATION OF NATURAL HERITAGE SITES. All barangays are directed to inform the Office of the natural heritage present in their areas. Any activities related to such must also be reported to the Office.

SECTION 14. BUSINESS DEVELOPMENT LIAISON. - The Office shall function as a Business Development Liaison which shall assist, as a one-stop-shop for Tourism Enterprises duly accredited and registered with the Office, as well as new investors in the sector, in liaising with all other City departments, agencies and offices, for all their compliance and regulatory requirements.

ARTICLE IV BRANDING, PROMOTIONS AND WAYFINDING

SECTION 1. POLICY ON BRANDING. - It is the policy of the City that, given the following:

- a. Its collection of heritage structures, a number of which are associated with our national hero, Jose Rizal, in his parentage and his ancestry, and his youth
- b. Its strength in the performing arts, with numerous recognitions won by its performing arts groups
- c. Its culinary traditions, with exceptional local dishes identified with the City
- d. Its sports and leisure facilities, and the potential to develop further leisure and recreational facilities especially along the Laguna lakefront

- e. Its industrial parks and new residential communities that anchor the City's present and future development

Biñan has much to offer a visitor, but that in order to present a compelling product for visitors, it must build on all these strengths, communicating a life well lived on culture, health, leisure, community, and productivity that engages all the senses of the visitor. It is for these reasons that the branding of the City shall be "Biñan: the City of Life".

SECTION 2. SINGULARITY AND ADAPTABILITY. – In order to strengthen this brand, it shall be consistently used in all communications, promotional and informational material released by the City, whether in print, digital, social, or broadcast media. A standard design shall be adopted and implemented consistently across all media platforms.

To emphasize the adaptability and diversity which this brand implies, a tagline may be added to the brand and used as needed, consistently using "Living" as the key word in the tagline. For example, the tagline may be, "Living Culture", "Living History", "Living Culinary Traditions", "Living 21st Century Lifestyles", among others.

The private sector shall be encouraged to use the brand and its taglines in reference to the City and its products, provided that it is done in manner that is respectful, inclusive, and patriotic.

SECTION 3. PROGRAM IMPLEMENTATION. – The Office shall be responsible for implementing the Tourism Branding and Promotions Program. To that end, it shall be provided the necessary resources for an online-centered branding and promotions program, requiring that it:

- a. Establish, maintain, and operate an independent website focused on the City's tourism program, to provide the public with information about the City's pandemic measures, tourism sites, facilities, events, and activities, among others, provided that the website can be independently maintained and managed by the Office.
- b. Establish, maintain, and operate various social media accounts and a social media presence for the City's tourism program, including the ability to promote the City and its sites, events, facilities, through such platforms.

While the branding and promotions program is intended to focus on establishing an on-line presence, the program does not preclude, but should be well integrated into, traditional media of print and broadcast, as well as events and activities.

SECTION 4. EVENTS. – The Office shall develop a comprehensive calendar of events and take the lead in organizing and implementing them, as provided under City Ordinance No. 12-2016, Section 4.3. In developing and implementing these events, the Office should implement not only day-specific commemorative events, such as various fiestas or festivals, but also day-to-day activities that ensure a continuous and ongoing program of performances in various sites throughout the City but centered in the plaza and its environs.

SECTION 5. WAYFINDING. – As provided in Section C of Annex F (p.130) of the Tourism Master Plan, entitled "Urban and Landscape Design" the City shall in so far as practicable, implement the recommendations therein as regards the use and design of wayfinding devices throughout the City to ensure standardization of design, consistency as regards branding, and the proper and effective communication of information regarding the City. The implementation of the recommendations of the Wayfinding Study shall begin with the Heritage District, then the broader Barangay Población, the Tourism Development Areas, arterial connections between the Barangay Población to the outlying Tourism Development Areas, then other parts of the City, radiating outwards from the historic core.

ARTICLE V

GENERAL INTERVENTIONS TO ENHANCE PUBLIC SPACES AND WELFARE

SECTION 1. POLICY ON PUBLIC SPACES AND PUBLIC WELFARE. – Consistent with the General Welfare Clause in the Local Government Code, Section 16, and mindful of the Constitution, Article XII, Section 6, that the use of property bears a social function, and all economic agents shall contribute to the common good, it is recognized that the general state of public spaces, and the interaction of private property with the public domain, has a significant impact upon the community's well-being, its readiness to receive visitors, and the perception of potential visitors

that a community is worth visiting. In this regard, considering the impact of tourism on economic development, and its potential to incentivize the protection of cultural and natural heritage, the City recognizes the necessity for specific interventions to improve the state and condition of the City.

SECTION 2. URBAN LANDSCAPE AND DESIGN. - As provided in Section C of Annex F (p.130) of the Plan, entitled "Urban Landscape and Design - Pedestrian Consideration, Vehicular Circulation, and Street Fabric and Infrastructure" of the "Heritage Design Guide", the City shall, in so far as practicable, implement the recommendations therein as regards the use and design of streets and sidewalks, parks and parking spaces, as well as the overall greening of the City, to ensure a more orderly, clean, safe, and climate resilient City. The implementation of these urban landscape and design recommendations shall begin at the Heritage District, then the broader Barangay Población, then other parts of the City, radiating outwards from the historic core.

SECTION 3. THE USE AND REGULATION OF SIGNS. - City Ordinance No. 1-2018 on "Designating Places and Regulating the Hanging or Displaying of Streamers, Tarpaulin, Billboards, and other Forms of Structure for Purposes of Greeting, Information, and Ads," is hereby reiterated and incorporated into this Code.

SECTION 4. EASEMENTS OF RIVERS AND THE SHORES OF LAKES. - An easement of twenty (20) meters is hereby established along the shore of Laguna Lake, and an easement of three (3) meters along the banks of rivers, being subject to the easement of public use in the interest of recreation, navigation, floatage, fishing and salvage. No person shall be allowed to stay in this zone longer than what is necessary for recreation, navigation, floatage, fishing or salvage or to build structures of any kind.

These easements shall, whenever possible, be planted to shrubs and trees appropriate to the location, climate, and biodiversity of the area. Facilities for public use oriented towards recreation, navigation, floatage, fishing and salvage may be allowed.

SECTION 5. THE CITY'S RIVERSIDE. - In order to better preserve the City's rivers and streams for community recreational use, the City shall identify specific portions thereof that should be properly managed, and the easements thereof properly planted to appropriate trees and shrubs, and where possible, shall be developed as open green space with access to the water for purposes of community recreation. In this regard, the City shall:

- a. Identify the owners of the banks of said portions, and if privately owned, to execute agreements that communicate to and require the owners to manage said banks properly, follow existing laws and ordinances regarding easements, and the discharge of waste into the river. The Mayor is hereby authorized to negotiate access to and the development of these portions for the purposes of community recreation.
- b. The Mayor is hereby authorized to negotiate to purchase properties for the City at those specific portions in order to establish areas for community recreation.
- c. Areas already owned by the City shall be developed for purposes of community recreation.

SECTION 6. REVITALIZATION OF PROPERTIES. - The Mayor is hereby empowered to negotiate and enter into usufruct or lease contracts with the owners of various properties that have been left vacant, underutilized, blighted, or have become a nuisance or danger to the public, in order that such properties may be redeveloped and used for an agreed upon amount of time as public amenities, such as, but not including parks, community gardens, playgrounds, areas for lease or sub-lease to private entities as pop-up stores or cafes and restaurants.

In the event that the owner cannot be located, a notice shall be sent to its last address of record, and if no response has been received by the City within thirty (30) days from such notice, the City may, upon resolution of the Sangguniang Panlungsod, enter into temporary possession of such property in order to clean and redevelop such property for public amenities. The City shall deposit, on a periodic basis with the City Treasurer, such sums amounting to the reasonable rental of the property for the benefit of the owner of the property. Should the owner eventually appear, such sums shall be released to the owner, less the expenses incurred for cleaning and redeveloping the property and the appreciation in the value of the property as a result of such

intervention, and upon posting a bond for the total amount received in the event that other claimants come forward.

In no case shall the City be held liable for exercising its police power, public health and sanitation, abatement of nuisance, and public welfare powers by revitalizing such areas of the City in this manner.

ARTICLE VI TOURISM DEVELOPMENT AREAS AND PROGRAMS

SECTION 1. TOURISM DEVELOPMENT AREAS. - The following Tourism Development Areas are hereby established to anchor the development and implementation of specific tourism programs:

- a. The Lakefront Development Area, to establish a lifestyle, leisure, and recreation hub for the City along the shore of Laguna Lake
- b. The Población Development Area, to anchor various experiences of history, culture, performing arts, and culinary traditions amid the historic center and heritage structures of the City.

SECTION 2. GENERAL POLICIES. - In the development of the Tourism Development Areas and the implementation of their respective programs, the following principles shall guide the appropriate City officials:

- a. Policies, plans, and programs for tourism, and for policies, plans, and programs under other departments of the City whenever possible, should be aligned with the strategic direction identified for Tourism Development Areas under Article VI, Section 1, and with the General Interventions of Article V.
- b. Appropriate agreements should be entered into and executed by the City through the appropriate official with various stakeholders to formulate and implement various policies, plans, and programs more effectively.
- c. An approach of sustainability should be adopted in line with the United Nations Sustainable Development Goals, including but not limited to:
 1. Investment in the City should promote beneficial local employment whenever possible, preferring residents of the City first, then of neighboring towns next, then other candidates from other areas.
 2. Preserving the cultural values of existing built heritage, the urban landscape, and also the cultural practices of the City as an agricultural, commercial, and industrial hub for the region.
 3. Improving the environmental conditions of the City, by increasing the amount of open green spaces, that whenever possible, should be planted to native plant species, and by cleaning up the rivers and lakefront, and by reducing air pollution.
 4. Existing environmental laws should be properly enforced, particularly with regard to the disposal of waste and the regulation of pollution.
 5. Provide requirements and incentives for existing and new developments to invest in green design and renewable technologies.
 6. Provide requirements and incentives for existing and new developments to invest in accessible design.
 7. Encourage greater participation by stakeholders in policymaking, plan formulation, and program implementation, utilizing assets, resources, and properties not only of the City but of other stakeholders as well.

The foregoing principles shall also apply to the Potential Tourism Development Areas in Article IX and other areas that may thereafter be declared as a Tourism Development Area.

SECTION 3. CLUSTERING OF BARANGAYS. - The Mayor, upon the recommendation of the Council, consistent with the Local Government Code, Section 33, may establish clusters of barangays to consult, coordinate, and implement tourism policies, plans, and programs affecting an area that covers more than one barangay more effectively. These barangays may or may not

be contiguous to each other, but to form a cluster, they should share in the implementation of specific tourism themes, experiences, or products.

Such clustering shall not dilute or diminish the established autonomy of local governments but shall serve as an administrative tool to facilitate their common purposes as regards tourism and cultural development.

In this regard, clusters may be established for each of the Tourism Development Areas, to facilitate the consultation, coordination, and implementation of their respective policies, plans and programs.

SECTION 4. BARANGAY TOURISM CLUSTER COUNCILS. – When a tourism cluster is established, a Barangay Tourism Cluster Council consisting of the Barangay Tourism, Cultural and Historical Officers of each of the barangays shall be established to facilitate the consultation, coordination, and implementation of tourism policies, plans, and programs in their respective clusters.

ARTICLE VII THE LAKEFRONT DEVELOPMENT AREA

SECTION 1. THE LAKEFRONT DEVELOPMENT AREA. – The Lakefront Development Area shall consist of all parcels of land north of Barangay Dela Paz, the street itself, the parcels adjoining the street on its south side, and such other parcels as the Sangguniang Panlungsod may determine at the recommendation of the Council.

SECTION 2. PROPERTY IDENTIFICATION AND ACQUISITION. – The City Planning and Development Office and the Office of the City Assessor are hereby directed to identify the properties located within the Lakefront Development Area, their metes and bounds, their owners and contact information on record, and the status of their compliance with tax and other legal obligations. The Mayor is hereby authorized to negotiate with said property owners to acquire, lease, or otherwise enter into appropriate contractual arrangements in the name of the City for purposes of better implementing the Flood and Coastal Protection Plan and Lakefront Development Plan provided below.

SECTION 3. FLOOD MANAGEMENT AND COASTAL PROTECTION PLAN. - In the desire to establish a lifestyle, leisure, and recreation hub for the City along the shore of Laguna Lake, the City shall ensure that the lakefront area becomes a project that protects the City from flooding and erosion while promoting sustainable development. Toward that end, the City shall procure consulting services for a coastal protection and flood management plan, and allocating funds for the purpose.

SECTION 4. LAKEFRONT DEVELOPMENT MASTER PLAN. – Also, in furtherance of establishing a lifestyle, leisure, and recreation hub for the City along the shore of Laguna Lake, the City shall procure consulting services for a development master plan for this Area, in a manner that promotes its sustainable development and disaster resilience, and allocating funds for the purpose:

- a. This Area shall be of mixed-use, and parcels therein shall be devoted to commercial and retail, tourism, cultural, and recreational use. Residential uses shall be allowed when incorporated with such other uses.
- b. The Lakefront easement under Article V, Section 4, and such other areas as may be identified, shall be developed as open green park space. Such space may also be provided with other recreational amenities, such as playgrounds, outdoor sports facilities, park benches, among others, but in a manner consistent with the need to maximize drainage of water into the subsoil and to provide features that enhance coastal protection, public safety, and community leisure.
- c. The Lakefront Development Master Plan shall provide for the necessary architectural and design parameters to ensure this Area has a coherent and distinctive character and appearance, that is resilient to environmental risks, and takes specific measures to reduce emissions, waste, and consumption within this Area.

SECTION 5. INCENTIVES. – To facilitate the coordinated development of the Lakefront Area in a manner consistent with the Lakefront Development Master Plan, the incentives under Article III shall be provided to encourage the proper kinds of uses in this Area.

The City may also impose, if so recommended by the Lakefront Development Master Plan, additional fees and taxes for establishments and enterprises that do not meet the land-use guidelines.

SECTION 6. AUTHORIZATIONS. – The Mayor is hereby authorized:

- a. To explore, negotiate, and apply with the Laguna Lake Development Authority for broader use and developmental rights as regards Laguna Lake and its lakefront for leisure and recreational purposes.
- b. With the approval of the Sangguniang Panlungsod, to explore, negotiate, and enter into appropriate agreements, with other local government units along the shore of Laguna Lake in order to plan, develop, and implement mutually beneficial programs for environmental management, cultural programs, leisure, and tourism.
- c. If so recommended by the Council and by the Lakefront Development Plan, is hereby authorized to explore, negotiate, and apply with the Tourism Infrastructure and Enterprise Zone Authority for the designation of the Lakefront Tourism Development Area as a Tourism Enterprise Zone.

ARTICLE VIII

THE POBLACIÓN TOURISM DEVELOPMENT AREA

SECTION 1. THE HERITAGE DISTRICT. – Recognizing that, as fundamental Constitutional principles, arts, and culture are integral to national development, and national cultural and historic heritage should be conserved, promoted, and popularized. Recognizing further, that the use of property bears a social function, and that under the Local Government Code, the preservation and enrichment of culture is a mandate for the general welfare of the people. Therefore, City Ordinance No. 10-2017, “Establishing the Biñan Heritage District”, is hereby reiterated and incorporated into this Code, subject to the provisions of this Article.

SECTION 2. ANCHORING A LIVING CULTURE. – The Heritage District in Barangay Población, and Barangay Población itself, shall be the center for cultural activities in the City. It shall be the goal of the City, through appropriate programs of the Office, to communicate a visitor experience anchored in a “living culture” within this Area. In this regard, the various heritage structures, and spaces in this Area under the ownership or control of the City shall, whenever possible, be the venue for cultural activities, such as exhibitions, performances, cultural tours, cultural training and education, display, and sale of cultural products, among others, or tourism-oriented activities, such as providing accommodations, tours, cafes and restaurants, souvenir shops, among others.

SECTION 3. HERITAGE TOURISM. – Privately-owned properties within the Heritage District in Barangay Población, and in Barangay Población itself, shall be encouraged to venture into enterprises and activities that support cultural tourism. Toward this end, through a judicious use of zoning regulations, incentives, fees, among others, the City shall support properties and establishments that implement cultural activities, such as exhibitions, performances, cultural tours, cultural training and education, display and sale of cultural products, among others, or tourism-oriented activities, such as providing accommodations, tours, cafes and restaurants, souvenir shops, among others, as may be further provided in implementing rules and regulations.

SECTION 4. RIZAL AND THE CITY. – The Office is hereby mandated to promote, develop, and implement programs on the National Hero, Jose Rizal, not only focusing on his youth spent in Biñan or his parents and their roots in the City, but also in terms of developing a broader narrative of the life of Rizal and communicating this through performative tours, anchoring said programs in the Heritage District.

The Mayor is hereby authorized to explore, negotiate, and secure, consistent with the Local Government Code and in coordination with the National Museum, from the foreign governments

SECTION 5. INCENTIVES. – To facilitate the coordinated development of the Lakefront Area in a manner consistent with the Lakefront Development Master Plan, the incentives under Article III shall be provided to encourage the proper kinds of uses in this Area.

The City may also impose, if so recommended by the Lakefront Development Master Plan, additional fees and taxes for establishments and enterprises that do not meet the land-use guidelines.

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- b. With the approval of the Sangguniang Panlungsod, to explore, negotiate, and enter into appropriate agreements, with other local government units along the shore of Laguna Lake in order to plan, develop, and implement mutually beneficial programs for environmental management, cultural programs, leisure, and tourism.
- c. If so recommended by the Council and by the Lakefront Development Plan, is hereby authorized to explore, negotiate, and apply with the Tourism Infrastructure and Enterprise Zone Authority for the designation of the Lakefront Tourism Development Area as a Tourism Enterprise Zone.

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SECTION 2. ANCHORING A LIVING CULTURE. – The Heritage District in Barangay Población, and Barangay Población itself, shall be the center for cultural activities in the City. It shall be the goal of the City, through appropriate programs of the Office, to communicate a visitor experience anchored in a "living culture" within this Area. In this regard, the various heritage structures, and spaces in this Area under the ownership or control of the City shall, whenever possible, be the venue for cultural activities, such as exhibitions, performances, cultural tours, cultural training and education, display, and sale of cultural products, among others, or tourism-oriented activities, such as providing accommodations, tours, cafes and restaurants, souvenir shops, among others.

SECTION 3. HERITAGE TOURISM. - Privately-owned properties within the Heritage District in Barangay Población, and in Barangay Población itself, shall be encouraged to venture into enterprises and activities that support cultural tourism. Toward this end, through a judicious use of zoning regulations, incentives, fees, among others, the City shall support properties and establishments that implement cultural activities, such as exhibitions, performances, cultural tours, cultural training and education, display and sale of cultural products, among others, or tourism-oriented activities, such as providing accommodations, tours, cafes and restaurants, souvenir shops, among others, as may be further provided in implementing rules and regulations.

SECTION 4. RIZAL AND THE CITY. – The Office is hereby mandated to promote, develop, and implement programs on the National Hero, Jose Rizal, not only focusing on his youth spent in Biñan or his parents and their roots in the City, but also in terms of developing a broader narrative of the life of Rizal and communicating this through performative tours, anchoring said programs in the Heritage District.

The Mayor is hereby authorized to explore, negotiate, and secure, consistent with the Local Government Code and in coordination with the National Museum, from the foreign governments

of the territories in which Rizal lived or travelled, various material, memorabilia, artifacts for purposes of establishing a Rizal collection in the City.

SECTION 5. FOOD AND THE CITY. – The Office is hereby mandated to promote, develop, and implement programs to advance and enrich the cultural heritage of food in Biñan, encouraging not only the preservation of these food traditions, but also innovation and improvements in products and their marketability. The Council is hereby empowered to declare which food heritage or traditions shall be the focus the Office's programs.

SECTION 6. HERITAGE DESIGN GUIDE. – Annex F (p.128-161) of the Tourism Master Plan, entitled "Biñan City Heritage Design Guide", shall govern conservation, maintenance, and development within the Heritage District, and may, upon the recommendation of the Council, be applied to adjoining areas.

SECTION 7. INCENTIVES FOR THE HERITAGE DISTRICT. – As stated in Article III, Section 7, commercial activities in specific heritage sites and in the Heritage District shall be entitled to receive fiscal and other incentives under the Investment Code, provided that:

- a. Properties declared nationally or locally as heritage sites in which said commercial activities are conducted are properly maintained and conserved.
- b. Properties within the Heritage District that have not been declared as heritage sites have undertaken the necessary renovations to comply with the architectural requirements of the Heritage District, as provided in the Heritage District Ordinance, Section 6, and as provided in Section 8 below.

SECTION 8. GENERAL STANDARDS FOR CONSERVATION. – As a general rule in further implementation of the City Ordinance No. 10-2017 while striking a balance between conservation and development, in reflecting the architectural requirements of Spanish and American colonial periods, it is understood that the standards that should be adopted are the following:

- a. A declared site should be reconstructed or restored to its historical appearance at the point in time during Spanish or American colonial periods in which it was most culturally significant, whether for its architecture, history, or other kinds of cultural significance, according to the best available research.
- b. A site that has not been declared should adopt a strategy of:
 1. Reconstruction or restoration to its historical appearance during which it was most aesthetically appealing, during the Spanish or American colonial periods, according to the best available research
 2. In the absence of available research, development or redevelopment adhering to the Spanish or American colonial period architectural requirements in relation to the harmony for the street side character of the District
- c. A site that is or becomes culturally significant at a time after the Spanish or American colonial periods may be maintained or restored to that time during which it was most significant, according to the best available research.
- d. The street side character of the District refers not only to the street side façade of the buildings during the Spanish or American colonial periods, including elements like windows, doors, grilles, materials, façade heights, roofing, among others, but also to the scale and size of the structure of the building in relation to people and the street, and the view of the streetscape, sky, and open areas, and of the availability of sunlight and ventilation.

SECTION 9. SPECIFIC APPROACHES. – Unless the Heritage District Administration provides otherwise, in implementing the Biñan Heritage Design Guide, the following architectural conservation policy approaches shall be applied within the Heritage District, depending on the current status of the property:

- a. All properties within the Heritage District, regardless of whether they are declared heritage sites or not, shall be maintained in their best possible condition for their present uses.
- b. Properties declared nationally or locally as heritage sites shall be reconstructed or restored to its historical appearance at the point in time during Spanish or American

- colonial periods in which it was most culturally significant, whether for its architecture, history, or other kinds of cultural significance, according to the best available research.
- c. Properties within the Heritage District that have not been declared as heritage sites but have complied with the architectural requirements of the Heritage District Ordinance may be permitted to:
 1. Further restore or reconstruct according to the best available research on the architecture of the said site.
 2. Adopt minor alterations to the appearance of the building or adaptively re-use the interior of the building provided that its street side character is consistent with the Spanish or American period architectural requirements of the Heritage District Ordinance.
 3. Make additions toward the rear of the property, provided that the additions are set back from the front of the building, do not exceed height limitations, and do not interfere with the street side character of the building and of the Heritage District.
 - d. Properties within the Heritage District that have not been declared as heritage sites and have not complied with the architectural requirements of the Heritage District Ordinance, shall comply with the Heritage District Ordinance upon applying for a permit for construction, addition, repair, or renovation, and may be permitted to:
 1. Restore or reconstruct according to the best available research on the architecture of the said site.
 2. Construct, add, renovate, or repair in a manner that, for the street side character of the building, reflects the Spanish or American period architectural requirements of the Heritage District Ordinance, provided that the façade heights are properly observed, adopting the approaches of either literal replication or stylistic invention.
 3. Make constructions that do not comply with the Spanish or American period architectural requirements of the Heritage District Ordinance, provided that they are located toward the rear of the property, are set back from the front of the property, do not exceed height limitations, and do not interfere with the street side character of the Heritage District, while the front portion of the property shall comply with the Spanish or American period architectural requirements of the Heritage District Ordinance, and observe proper façade heights, to enhance the street side character of the District, adopting the approaches of either literal replication or stylistic invention.

ARTICLE IX OTHER TOURISM DEVELOPMENT PROGRAMS

SECTION 1. THE INDUSTRIAL TOURISM PROGRAM. – A tourism program for the various special economic zones in the City, and the barangays in which they are located, shall be formulated, developed, and implemented that shall:

- a. Strive to generate an awareness and interest in manufacturing and industrialization among the youth and other potential sectors by establishing trips and tours to the various factories in these special economic zones.
- b. Work with enterprises within these zones in establishing and implementing these programs, by highlighting the potential benefit to them for employment, marketing and promotions, and corporate social responsibility.
- c. These special economic zones and their surrounding barangays shall examine the need for, and work to establish as necessary, the facilities needed to support a growing tourism sector for the businesses in these zones, such as accommodations, restaurants, cafes, shopping centers, and other leisure establishments.

The barangay tourism council, or the Barangay Tourism Cluster Council, if one has been established, shall have one representative from each of the special economic zones located in its/their territorial areas.

SECTION 2. THE SPORTS AND RECREATION TOURISM PROGRAM. – A tourism program shall be established for the various sports and recreational facilities in the City, whether owned or controlled by the City or by other stakeholders, in order to maximize their value and contribution to the City's development and its image.

SECTION 3. THE RIVERSIDE TOURISM PROGRAM. –A tourism program shall be established to convert specific portions of the City's Riverside into river-facing Tourism Enterprises, and to develop for ecotourism purposes the portions thereof which are rich in biodiversity or have landscapes of natural beauty.

The Tibagan Falls and Prinza Dam Development Committee is hereby created to conduct studies and assessment pertaining to possible Riverside Tourism Programs.

SECTION 4. ADDITIONAL TOURISM DEVELOPMENT AREAS. The Mayor may, upon the recommendation of the Council, establish additional Tourism Development Areas on which to anchor the development and implementation of any of the foregoing tourism development programs.

ARTICLE X OTHER PROGRAMS

SECTION 1. COLLABORATION WITH OTHER LOCAL GOVERNMENTS. – The City shall, through the appropriate officer, coordinate and liaise with other local government units to more sustainably and wholistically plan, develop, and implement various tourism programs, particularly when such programs may have thematic links between such local government units.

SECTION 2. COLLABORATION WITH NATIONAL AGENCIES. – The City shall, through the appropriate officer, coordinate and liaise with national agencies to more sustainably and wholistically plan, develop, and implement various tourism programs, particularly when such programs may have thematic links between such national agencies.

SECTION 3. COLLABORATION WITH INTERNATIONAL AGENCIES. – The City shall, through the appropriate officer, coordinate and liaise with international agencies to more sustainably and wholistically plan, develop, and implement various tourism programs, particularly when such programs may have thematic links between such international agencies.

ARTICLE XI FINAL PROVISIONS

SECTION 1. PENALTIES FOR VIOLATIONS. – Violations of this ordinance shall be penalized with a fine not exceeding five thousand pesos (PHP 5,000.00) or imprisonment of not more than six (6) months, or both, for every violation of the abovementioned requirements.

For purposes of implementing said penalty, after a violator has already been notified of such violation, every calendar month for which the violation continues to subsist shall count as an additional violation. The failure of to allow the inspection of its facilities shall constitute a violation of this ordinance, and each instance of continued refusal despite notice shall constitute separate violations.

After due notice and hearing, the City Tourism and Cultural Affairs Officer may also cause the suspension or cancellation of an enterprise's accreditation or request the Business Permits and Licensing Office to suspend or cancel the violator's permit to do business in the City.

SECTION 2. IMPLEMENTING RULES AND REGULATIONS. – The Mayor, upon recommendation of the Council, may issue rules and regulations as may be deemed necessary in the implementation of this Tourism Code.

SECTION 3. FUNDING. – The following are necessary:

- a. The City shall include in its annual budget the estimated funding requirements for the implementation of this ordinance;
- b. Funding and support from the National and Provincial Government, its departments, and agencies, through representations made by the City shall also be pursued and secured for the implementation of this ordinance.

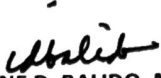
SECTION 4. SEPARABILITY CLAUSE. – If for any reason, any part or provision of this Code shall be held unconstitutional or unlawful by the court of competent jurisdiction, the other parts or provisions which are not affected thereby shall continue to be in full force and effect.

SECTION 5. REPEALING CLAUSE. – Any ordinance, executive order, resolution, local issuances or rules and regulations or part thereof which are inconsistent with this code are hereby repealed and/or modified accordingly.

SECTION 6. EFFECTIVITY. – This ordinance shall take effect immediately.

UNANIMOUSLY APPROVED.

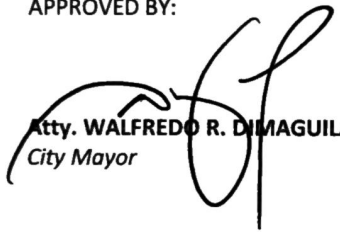
CERTIFIED CORRECT:


IRENE D. BALIDO, MPA
OIC, City Council Secretary

ATTESTED BY:


Hon. ANGELO B. ALONTE
City Vice Mayor/Presiding Officer

APPROVED BY:


Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor